

September 8, 2010



U.S. Department  
of Transportation

East Building, PHH – 30  
1200 New Jersey Avenue, Southeast  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 14382  
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain DOT Specification 3BN nickel cylinders in dedicated, interchangeable tungsten hexafluoride/hydrogen fluoride service that are requalified using external visual inspection in lieu of hydrostatic pressure test and internal visual inspection. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.163 in that cylinders removed from hydrogen fluoride service are not required to be condemned when used in conformance with this special permit, and § 180.209 in that cylinders used in tungsten hexafluoride service may be requalified using external visual inspection.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description |                           |                               |                          |
|---------------------------------|---------------------------|-------------------------------|--------------------------|
| Proper Shipping Name            | Hazard Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group         |
| Hydrogen fluoride, anhydrous    | 8                         | UN1052                        | I                        |
| Tungsten hexafluoride           | 2.3                       | UN2196                        | N/A,<br>Hazard<br>Zone B |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3BN cylinder with a marked service pressure of 400 psig.

b. TESTING - At the time that periodic requalification becomes due, each cylinder may be given a complete external visual inspection in conformance with § 180.205(c) in lieu of the hydrostatic pressure test and internal visual inspection. Cylinders removed from dedicated, interchangeable tungsten hexafluoride/hydrogen fluoride service must be condemned in accordance with § 180.205 and the cylinder may be rendered incapable of holding pressure.

c. OPERATIONAL CONTROLS -

(1) Cylinders must be in dedicated service for tungsten hexafluoride and hydrogen fluoride. Dedicated cylinders may be used for these two materials interchangeably. No testing or cleaning is required when changing from one material to the other.

(2) Each cylinder must be in conformance with § 173.338.

(3) Hydrogen fluoride filling density may not exceed 85% of the cylinder's water weight capacity. The filling limit for tungsten hexafluoride must comply with §§ 173.301 and 173.304(b).

(4) The moisture impurity content in tungsten hexafluoride and hydrogen fluoride shall not exceed the dew point at service temperature and pressure.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each cylinder must be marked in accordance with § 180.213 as required for cylinders being requalified using external visual inspection only.

d. Records of the cylinders requalified under this special permit must be maintained by the RIN holder and made available to the DOT upon request.

e. In addition to the cylinder specification marking, each cylinder must be plainly and durably marked "DOT-SP 14382" as specified in § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie  
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

[http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm)

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PO: BMoore:sln